

Sunita Shukla v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 April 2022 · WRIT - C No. - 3303 of 2022 · **Writ disposed of; relegated to fresh Clause 6.8 objection.**

HEADNOTE

A consumer challenged an electricity demand and recovery notice as issued without considering her objection. Without opining on merits, the High Court disposed of the writ with liberty to file a fresh objection under Clause 6.8 of the Electricity Supply Code, 2005, to be decided by a reasoned speaking order within four weeks after opportunity of hearing.

FACTUAL SUMMARY

Sunita Shukla petitioned the Allahabad High Court alleging that respondent no. 2 had raised an electricity demand and issued a recovery notice without considering her objection. Counsel for the respondents submitted that she could move a fresh objection under Clause 6.8 of the Electricity Supply Code, 2005, which would be considered within a time-bound period after a reasonable opportunity of hearing. The Division Bench heard counsel for the petitioner and the Standing Counsel for the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

billing objection

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to file a fresh objection under Clause 6.8 of the Electricity Supply Code, 2005 within three weeks; if so filed, the licensee shall decide it by a reasoned speaking order within four weeks after reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

fresh-objection-under-clause-6.8

The Court did not decide the demand or recovery notice and instead relegated the consumer to a fresh Clause 6.8 objection, with a time-bound speaking order after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ELECTRICITY DEMAND AND RECOVERY NOTICE, AND WHETHER THE EARLIER OBJECTION HAD BEEN CONSIDERED

Court expressly declined to opine on merits. ¶ 1